



CHAPTER 57.

An Act to amend the law relating to the Burma Legislature (including the law relating to the franchise in Burma). [12th July 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Third Schedule to the Government of Burma Membership Act, 1935 (hereinafter referred to as "the principal Act") shall have effect subject to the amendments specified in the following provisions of this section. of the
Legislature.
26 Geo. 5. &
1 Edw. 8. c. 3.

(2) For sub-paragraph (b) of paragraph 1 of the said Schedule (which relates to the qualifications for being chosen to fill a seat in the Legislature) there shall be substituted the following sub-paragraph—

"(b) is, in the case of a seat in the House of Representatives, not less than twenty-one years of age, and, in the case of a seat in the Senate, not less than thirty years of age ; and "

(3) In paragraph 12 of the said Schedule (which relates to the qualifications for being chosen to hold a seat in the Senate), the following provisions shall be omitted, that is to say—

- (a) heads (i) and (ii) of sub-paragraph (1) ; and
- (b) sub-paragraphs (2) and (3).

2.—(1) The Fourth Schedule to the principal Act (which relates to the franchise) shall have effect subject to the amendments specified in the following provisions of this section.

(2) After paragraph 2 of the said Schedule there shall be inserted the following paragraph :—

“ 2A. Subject to the following provisions of this Schedule, a person shall be qualified to be included in the electoral roll for a general constituency if he is ordinarily resident in the constituency and has attained the age of twenty-one years ”.

(3) The following provisions of the said Schedule shall be omitted, that is to say :—

(a) in paragraph 3, the words “ has attained the age of eighteen years and ” ;

(b) paragraphs 10 to 16 ;

(c) in sub-paragraph (1) of paragraph 19, the definitions of “ previous financial year ”, “ previous agricultural year ”, “ urban constituencies ”, “ rural constituencies ”, “ agricultural year ”, and “ His Majesty’s regular military forces ”; and

(d) sub-paragraphs (3), (4), (5) and (7) of paragraph 19.

Supplemental. 3. The principal Act shall have effect as if, in section one hundred and fifty-four thereof (which empowers His Majesty in Council to amend certain provisions of that Act relating to the Burma Legislature), any reference to that Act, except in the phrase “ the commencement of this Act ” were a reference to that Act as amended by sections one and two of this Act.

Interpretation. 4. In the preceding provisions of this Act, the references to the Third and Fourth Schedules to the principal Act shall be construed as references to those Schedules as amended by any Order in Council made under the principal Act.

Printing. 5. A copy of the principal Act giving effect to :—

(a) the amendments made by sections one and two of this Act ; and

(b) subject to the said amendments, those amendments of the principal Act which are mentioned in subsection (2) of section seventeen of the India and Burma (Miscellaneous Amendments) Act, 1940 ;

3 & 4 Geo. 6.
c. 5.

shall be prepared and certified by the Clerk of the Parliaments, and deposited with the Rolls of Parliament, and His Majesty’s printer shall print in accordance with the copy so certified all copies of the principal Act which are printed after the said copy has been so prepared, certified and deposited.

Short title. 6. This Act may be cited as the Burma Legislature Act, 1946.

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